

Adam Bernard

Solicitors

Attendance Note

Date: 1/08/2025	Time: 2:13 PM to 3:10 PM	File No: TO/JAZZDENNIS
Matter: Housing Dispute Matter		
Attendance upon: JAZZ DENIS - tenant		
Notes: Client: Jazz Dennis Date of Consultation: 31/07/2025 Time: 2:12 PM – 3:10 PM Location: Crawford Place Office <i>1. Review of Tenancy Documents and Rent Increase Clause</i> Following a review of the tenancy agreement you provided, we discussed the clause dealing with rent review. That clause provides that rent is to be reviewed annually on the anniversary of the tenancy, and any change is to reflect the movement in the Retail Prices Index (RPI). Your tenancy commenced on 5 March 2023, meaning the earliest date a rent increase could lawfully take effect would be 5 March 2024, subject to proper written notice. You advised that the landlord attempted to increase the rent from 1 September 2024, which is not consistent with the terms of the agreement. I advised that: • A rent increase outside of the anniversary date is not valid under the clause; • While there is no requirement for a Section 13 notice (as the tenancy includes a review clause), the landlord must still provide reasonable notice — typically at least one month, and crucially to take effect on from the anniversary date; • Accordingly, the attempted increase from 1 September 2024 is, in my view, not legally effective, and you are not obliged to accept it.		

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2. Lack of Key Fob on Move-In

You informed me that upon moving into the property, you were only one key fob instead of two which meant that you were without a key fob for 29 days, which restricted your access. I advised that this could amount to a breach of quiet enjoyment, and you are entitled to seek:

- Special damages for any direct losses (e.g., missed work, additional transport or access costs);
- General damages for the stress, inconvenience, or disruption caused.

You should begin gathering evidence (communications, witness statements, records of missed work or appointments) to support any such claim.

3. Lack of Hot Water and Heating

You described experiencing periods without hot water or heating, which caused significant discomfort to you and your family.

You confirmed that you already received compensation for the first incident. I advised that you cannot claim compensation again for that specific issue, as it has been resolved. However, you may refer to it in future correspondence or complaints to demonstrate a pattern of poor management or neglect on the part of the landlord or agent.

For any further or ongoing periods without hot water or heating — particularly those not yet remedied — you may be entitled to further compensation. I advised:

- Claims may be made for general damages (distress and inconvenience);
- Special damages may also be recoverable, e.g., costs of alternative heating or health-related expenses;
- The vulnerabilities you described — your partner's condition, and having a young infant in the household — are highly relevant and likely to support a higher damages award.

You advised of income loss during this time. Based on your initial account, I advised that your total claim for compensation could exceed £3,000, and may reasonably approach £5,000, subject to supporting evidence and the severity of the impact.

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4. Next Steps

I advised the following course of action:

1. Gather and organise evidence, including:
 - Communications with the landlord/agents;
 - Receipts, bills, photos;
 - Medical letters;
 - Work absence records and loss of income calculations.
2. Since it appears that the agency's internal complaints procedure has been exhausted, you should make a formal complaint to the Housing Ombudsman Service given that the claim falls under a small claim. This service is free and often leads to binding recommendations or compensation awards.
3. After receiving a response from the Ombudsman, if you are unhappy with the results, you may return to us to explore potential legal remedies, including:
 - A **county court claim** for compensation; or
 - Other appropriate legal action depending on the Ombudsman's outcome.

Time engaged: 58 minutes